IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.401

CA(CAA)/30(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Welspun Metalics Limited **.....Applicant**
(Transferor Co.)
Welspun Corp. Limited **.....Respondent**
(Transferee Co.)

Order delivered on 09/05/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : None.
For the Respondent :

ORDER

None appears for the petitioner companies.

Following clarifications have been sought:

1. As per the certificate of CA regarding preference shareholder of the transferee company, annexed on page no.925 (serial no.1 and 2 of the CA lists), the consent affidavit is annexed at 916 to 921, but copy of the Board resolution / authorization of the person giving consent is not annexed.
2. The transferee company is seeking dispensation of meeting of the unsecured creditors (total no.1556) and equity shareholders (total no.87,643) and transferor company is also seeking dispensation of the meeting of the unsecured creditors (total no.595), in this regard, applicant companies are required to file the relevant compilation of the case laws.

The petitioner companies to file clarificatory affidavit within 7 days'. Since the Bench is reconstituted, the order is de-reserved.

List for hearing on 19.05.2023

-Sd- -Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Prakash - Steno